

Pallav Goyal And 2 Others vs State Of U.P. And Another on 5 December, 2019

Author: Rajiv Gupta

Bench: Rajiv Gupta

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 75

Case :- APPLICATION U/S 482 No. - 44661 of 2019

Applicant :- Pallav Goyal And 2 Others

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Surendra Kumar

Counsel for Opposite Party :- G.A.

Hon'ble Rajiv Gupta,J.

Sri M.L. Jain, Advocate has filed his vakalatnama along with short counter affidavit on behalf of the Opposite Party Nos.2 and 3 today in Court, which is taken on record.

An affidavit, filed on behalf of the Opposite Party No.2 today in Court, is also taken on record.

Heard learned counsel for applicants, learned AGA for the State as well as Sri M.L. Jain, learned counsel for the Opposite Party Nos. 2 and 3 and perused the record.

This application under Section 482 Cr.P.C. has been filed by the applicants with the prayer to quash the impugned summoning order dated 19.03.2019 and entire proceedings of Criminal Complaint Case No. 5086 of 2018 (Ravindra Mohan Bansal Vs. Pallav Goyal and others), under Sections 498-A, 323, 504 IPC and Section 3/4 of Dowry Prohibition Act, Police Station Hari Parwat, District Agra,

pending in the court of Judicial Magistrate-IIInd, Agra.

Learned counsel for the Opposite Party Nos.2 and 3, at the very outset, has submitted that on the intervention of respected members of the society, parties has entered into a compromise and they have settled their all disputes and differences in order to maintain harmonious and cordial relations between them and in this regard, a settlement deed dated 17.10.2019 has been made between the parties. As per the settlement deed, the applicant no.1 has agreed to pay a sum of Rs.10,00,000/- to the Opposite Party No.3 in full and final settlement of her all claims. Out of Rs.10,00,000/-, Rs.3,00,000/-, vide cheque no. 082792 dated 24.09.2019 has already been received by the Opposite Party No.3 and the balance amount of Rs.7,00,000/- has to be paid at the time of passing the decree in the Suit filed under Section 13-B of the Hindu Marriage Act.

Learned counsel for the Opposite Party Nos. 2 and 3 has next submitted that in view of the settlement deed made between the parties, Opposite Party No.2 does not want to pursue the criminal proceedings against the applicants and she has no objection, if the same are quashed.

Learned counsel for the applicants has also submitted that in view of the settlement deed made between the parties dated 17.10.2019, the applicant no.1 has already paid Rs.3,00,000/- to the Opposite Party No.3 and the balance amount of Rs.7,00,000/- has to be paid at the time of passing the decree in the Suit filed under Section 13-B of the Hindu Marriage Act, as such, entire criminal proceedings against the applicants be quashed.

This Court is not unmindful of the judgements of the Apex Court in the cases of:-

1. B.S. Joshi and others Vs. State of Haryana and another (2003)4 SCC 675.
2. Nikhil Merchant Vs. Central Bureau of Investigation [2008]9 SCC 677].
3. Manoj Sharma Vs. State and others (2008) 16 SCC 1.
4. Gian Singh Vs. State of Punjab (2012) 10 SCC 303.
5. Narindra Singh and others Vs. State of Punjab (2014) 6 SCC 466.

Wherein the Apex Court has categorically held that compromise can be made between the parties even in respect of certain cognizable and non compoundable offences. Reference may also be made to the decision given by this Court in Shaifullah and others Vs. State of U.P. and another [2013 (83) ACC 278], in which the law expounded by the Apex court in the aforesaid cases has been explained in detail.

Considering the facts and circumstances of the case, as noted herein above, and also the submissions made by the counsel for the parties, the court is of the considered opinion that no useful purpose shall be served by prolonging the proceedings of the above mentioned case.

Accordingly, the proceedings of Criminal Complaint Case No. 5086 of 2018 (Ravindra Mohan Bansal Vs. Pallav Goyal and others), under Sections 498-A, 323, 504 IPC and Section 3/4 of Dowry Prohibition Act, Police Station Hari Parwat, District Agra, pending in the court of Judicial Magistrate-IIInd, Agra are hereby quashed.

The application under Section 482 CrPC is accordingly allowed. There shall be no order as to costs.

Order Date :- 5.12.2019 Nadim